



File No.: EXP202414976

RESOLUTION FOR TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 19, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CLUB RÁPIDO DE BOUZAS (hereinafter, CLUB BOUZAS), through the agreement transcribed below:

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File No.: EXP202414976

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The Spanish Agency for Data Protection has become aware of certain facts that could constitute a possible infringement attributable to CLUB RÁPIDO DE BOUZAS with NIF G36711513 (hereinafter, CLUB BOUZAS).

The facts brought to the attention of this authority are:

The Local Police of ***LOCALITY.1 provided a Service Report dated 11/10/2024, following a call from (...) the father of a minor who plays at the (...) based at field A.A.A., warning that outside of it, "he observed a cardboard box full of documentation of players belonging to the aforementioned club, from many seasons, most of which were of minors, located inside a garbage container, situated on the public road on the sidewalk and near the main entrance of the field." Two Agents of the Local Police of ***LOCALITY.1 responded to the call and accompanied by the requester went to the container where they reported seeing: "inside a green container, located at the top of it, with the flaps open and visible to passersby, they observe the cardboard box full of documentation, in which hundreds of player cards and federation records are located containing personal data such as: ID number, name and surname, address, photograph...". The Agents took the box and transported it to the Police Headquarters where they inspected it and detailed its contents in the Service Report. Subsequently, they located the manager of the (...) who turned out to be B.B.B. with ID: ***NIF.1 to whom they showed all the documentation found, stating that "they had been cleaning these days and that someone must have confused and thrown away that box, but he does not know who."

Initially, the following documentation is available:

- Report from the Local Police of ***LOCALITY.1, mentioned above (...).
- Photographic report of the documentation located, carried out by the Local Police of ***LOCALITY.1 and showing:
 - o Cards issued by the Galician Football Federation where appear: photograph, name, surname, and ID of the players.
 - o Player records in which appear photograph, name and surname, ID, address, phone number, copy of ID, and data of parents.
 - o Photographs of players with name and surname on the back.

SECOND: According to the report collected from the AXESOR tool on 20/11/2024, the entity CLUB BOUZAS is an association established in 2017 and with operating results for 2023 of (...) €.

LEGAL GROUNDS

I

Competence

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is

competent to initiate and resolve this procedure.

II

Procedure

Likewise, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this Organic Law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

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The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it shall lapse, and consequently, the case shall be archived, in accordance with the provisions established in Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

It is advisable to take into consideration the detailed Report from the Local Police of ***LOCALIDAD.1:

"Being 20:30 hours on the day 08/10/2024, we arrived at the exterior of the Baltasar Pújales football field, located at Calle Paz Andrade No. 2 in Bouzas, ***LOCALIDAD.1, where we were approached by: ***NIF.1, with ID ***NIF.2. This person states that he is the father of a minor who plays for the club "(...)", based at the A.A.A. field, and that outside of it he observed a cardboard box full of documentation of players belonging to the aforementioned club from many seasons, most of whom were minors, located inside a garbage container situated on public thoroughfare, on the sidewalk and near the main entrance of the field. The requester accompanies the officers to the container. Inside a green container, located at the top of it, with the flaps open and visible to passersby, they observe the cardboard box full of documentation, in which hundreds of membership cards and federation records are found containing personal data such as: ID, name and surname, address, photograph, etc. The officers take the box and place it in the police vehicle, transporting it to Headquarters, where the box is inspected and it is observed that inside it there are:

- A total of 1,444 membership cards issued by the Galician Football Federation where the following appears: photograph, name, surname, and ID of the players.
- Hundreds of player records in which appear photograph, name and surname, ID, address, mobile phone, data of one of the parents: Name and Surname, ID, email, address, and mobile phone number, in addition to a photocopy of the ID or family book. In many of them, there is an account number for direct debit payments.
- Photographs of players with name and surname written on the back.
- An original ID without the chip.
- Other club documentation.

The manager of the (...) is located, resulting in being: B.B.B., with ID ***NIF.1, and he is informed that a report will be made that will be sent to the AEPD, showing him all the documentation found, stating that they were cleaning these days and that someone must have confused and thrown away that box, but he does not know who. This person provides club data: CIF: G-36711513, name: "Club Rápido de Bouzas", address: (...), ***LOCALIDAD.1, (...): C.C.C., with phone number: ***TELÉFONO.1.

This box is collected and all its contents are deposited in the Local Police Headquarters of ***LOCALIDAD.1, in a sealed bag with seal number (...). Page (...) Local Police Headquarters of ***LOCALIDAD.1."

Regarding the photographic annex, the Local Police of ***LOCALIDAD.1 adds the following title to the photograph:

- Photograph No. 1: Records in which appear photograph, name and surname, ID, address, and copy of ID
- Photograph No. 2: Example of record with photograph, name and surname, ID, address, and copy of ID
- Photograph No. 3: Records in which appear photograph, name and surname, ID, address, data of one of the parents or legal guardian, and in many of them a bank account for direct debit payments.
- Photograph No. 4: Photographs with name and surname written on the back. (more than 100 photographs are counted).
- Photograph No. 6: Federation cards of players
- Photograph No. 7: Total documentation located.
- Photograph No. 8: Total documentation located (this Instructor notes that the documentation as a whole occupies an office desk)."

In this case, in accordance with the provisions established in Articles 4.1 and 4.2 of the GDPR, it is noted that there is a processing of personal data, since the CLUB BOUZAS carries out, among other processes, the collection and storage of personal data of individuals such as their name and surname, their photograph, date of birth, address, email, and bank account number, among others.

CLUB BOUZAS carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Obligation Breached. Integrity and Confidentiality

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in such a manner as to ensure an adequate security of personal data, including protection against unauthorized or unlawful processing and against

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its loss, destruction, or accidental damage, through the application of appropriate technical or organizational measures ("integrity and confidentiality").

In this case, CLUB BOUZAS, as the data controller of its users' personal data, was obliged to ensure that security measures were not circumvented; however, as stated by its manager, someone must have confused the documents and threw them into a trash container. This action allowed unauthorized access by third parties to hundreds of personal data such as names, surnames, photographs, etc., as these documents were seen by the father of a child who plays at the Club, who called the Police upon seeing a cardboard box full of documentation of players belonging to the aforementioned club from many seasons, most of whom were minors.

The fact that it was the negligent action of an employee or third party does not exempt the Club from its responsibility, as the responsible party for the proper use of security measures that should have ensured that hundreds of documents did not end up in a trash container, accessible to anyone passing by on the public road.

The storage of 1,444 membership cards, hundreds of files, photographs (in many cases of minors), which contain personal data such as names and surnames, addresses, phone numbers, etc., would demonstrate the lack of organizational measures to ensure that the processing of this data is secure and confidential. CLUB BOUZAS should have taken extreme measures to ensure that no one from its organization placed mixed documents of different types, different seasons, and minors in such easily accessible cardboard boxes.

The absence of measures would also be evidenced by the subsequent deposit of that box in a trash

container, with the manager acknowledging that he did not know who had done it. From all this, it could be deduced that the Club has not adopted the appropriate technical and organizational measures to preserve the confidentiality and integrity of the data it stores, as after placing them in a disorganized manner in a cardboard box, "someone" considered them as "trash." It would have sufficed to establish adequate organizational measures, implement them, and use them with reasonable diligence. Therefore, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings, it is considered that the known facts could constitute an infringement, attributable to CLUB BOUZAS, for violation of the previously transcribed article.

V

Qualification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

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"a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Offenses, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute offenses."

For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following offenses are considered very serious and will be subject to a three-year statute of limitations:

a) The processing of personal data that violates the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and Corrective Measures" of the LOPDGDD provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

In the present case, considering the severity of the possible infringement, particularly regarding the consequences that its commission causes to the affected parties, the imposition of a fine, in addition to the adoption of measures, if appropriate, would be warranted.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, it is considered beforehand, (...).

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence currently available in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed.

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by violating the provisions established in Article 5.1.f) of the GDPR, allows for an initial administrative fine of €500.00 euros.

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.f) of the GDPR and Article 32 of the GDPR, in accordance with the provisions established in the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations are in compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe."

Thus, the responsible entity may be required to adjust its actions to comply with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings, the resolution adopted may require CLUB BOUZAS to adopt the following measures within a period of 3 months from the date of effectiveness of the resolution concluding this procedure:

- To demonstrate the adoption of technical and organizational measures to preserve the confidentiality and integrity of the personal data of the Club's players that it stores, thereby ensuring compliance with the provisions of Article 5.1.f) of the GDPR.
- In relation to the retention period of such data, to establish a maximum retention period for that information, concerning the need to demonstrate that those players can continue participating in competitions, but to delete it when they leave the Club or when it is no longer necessary.
- To establish a secure mechanism for the destruction of that information.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

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It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could lead to the initiation of further administrative sanctioning proceedings.

It is also reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to demonstrate compliance with that obligation before this AEPD.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEEDINGS against CLUB RÁPIDO DE BOUZAS, with NIF G36711513, for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified, respectively, in Articles 83.4 and 83.5 of the GDPR.

SECOND: TO APPOINT D.D.D. as the instructor and E.E.E. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the documents obtained and generated by the General Subdirectorate for Data Inspection in the actions prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of €1,000.00, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to CLUB RÁPIDO DE BOUZAS, with NIF G36711513, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in the present procedure. With the application of this reduction, the sanction would be set at €800.00, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of the present procedure, voluntarily pay the proposed sanction, which

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will result in a reduction of 20% of its amount. With the application of this reduction, the penalty would be set at 800.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the penalty is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the penalty would be set at 600.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the penalty.

For these purposes, in case of opting for any of them, you must send to the General Sub-Directorate of Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the penalty indicating which of the two reductions you are opting for or if it is for both.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (800.00 euros or 600.00 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Sub-Directorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the penalty to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es) and the Electronic Headquarters (sedeagpd.gob.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On January 2, 2025, CLUB BOUZAS proceeded to pay the penalty in the amount of 600.00 euros making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: CLUB BOUZAS has expressly renounced any action or administrative appeal against the penalty.

FOURTH: The initiation agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 600.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, CLUB BOUZAS has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided and expressly waiving any action or administrative appeal.

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It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total of 1,000.00 euros.

After CLUB RÁPIDO DE BOUZAS has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of 600.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202414976, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER CLUB RÁPIDO DE BOUZAS to notify the Agency within 3 months from the date this resolution becomes final and enforceable, regarding the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to CLUB RÁPIDO DE BOUZAS.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or administrative appeal, the present authority accepts the express renunciation stated by CLUB RÁPIDO DE BOUZAS, thus precluding the possibility of filing a discretionary appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since there is no administrative appeal available due to the express renunciation, this resolution will be final and fully enforceable from the moment of its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution may be provisionally suspended in the administrative jurisdiction if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact in writing.

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addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. You must also provide the Agency with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2

LOPDGDD, due to vacancy in the position of Presidency and Deputy

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